

**SUBSTITUTE FOR
HOUSE BILL NO. 4799**

A bill to amend 1893 PA 206, entitled
"The general property tax act,"
by amending section 44b (MCL 211.44b), as added by 1994 PA 297.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 44b. **(1)** ~~For~~ **All of the following apply for** purposes of
2 determining the date payment of the tax is received under this act:
3 ~~, the~~

4 **(a)** ~~The~~ date of a United States ~~postal service~~ **Postal Service**
5 **or other common carrier's** postmark ~~may~~ **must** be considered the date
6 of receipt ~~. However, a tax payment shall not be considered~~
7 ~~received prior to 7 calendar days before the date of actual~~
8 ~~receipt. This section does not apply to the payment of the tax~~
9 ~~prior to the sale provided under section 60.~~ **if the postmark date is**



1 not less than 5 days prior to an applicable due date and the
2 taxpayer can provide adequate documentation of the validity of the
3 postmark date.

4 (b) If a postmark date is later than the postmark date
5 described in subdivision (a) but not later than an applicable due
6 date, the postmark date may be considered the date of receipt.

7 (c) If authorized electronic payment is accepted, the date a
8 payment is submitted on an authorized electronic payment platform
9 must be considered the date of receipt. As used in this
10 subdivision:

11 (i) "Authorized electronic payment" means a payment made on an
12 established electronic platform that is maintained or approved by
13 the local tax collecting unit for the collection of taxes or
14 assessments under this act, including payment by ACH, debit card,
15 or credit card transaction. Authorized electronic payment does not
16 include payment by external banking applications, peer-to-peer
17 platforms, or unverified payment intermediaries.

18 (ii) "ACH" means that term as defined in section 1 of 2002 PA
19 738, MCL 124.301.

20 (2) This section applies to the payment of property taxes,
21 assessments, or other amounts shown as payable on a property tax
22 statement, and all related penalties, interest, or fees, provided
23 that the payment is received before the date property taxes on real
24 property are returned as delinquent to the county treasurer under
25 section 78a(2) .

26 (3) As used in this section, "due date" means the last day the
27 property tax bill may be paid without imposition of interest or
28 penalty.